

Port of Bombay Passenger Boats Rules, 1962

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Port of Bombay Passenger Boats Rules, 1962

UNION OF INDIA

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Port of Bombay Passenger Boats Rules, 1962

RULE PORT-OF-BOMBAY-PASSENGER-BOATS-RULES-1962 of 1962

Published on 23 November 1962

Commenced on 23 November 1962

[This is the version of this document from 23 November 1962.]

[Note: The original publication document is not available and this content could not be verified.]

Port of Bombay Passenger Boats Rules, 1962

Published in the Gazettee of India, 1962, Part II, Section 3(i), page 1966

2019.

G.S.R. 1628, dated 23rd November, 1962 - In exercise of the powers conferred by Cl. (k) of sub-section (1) of Section 6 of the Indian Ports Act, 1908 (15 of 1908) and in supersession fo the Port of Bombay Passenger Boats Rules, Table of Fares and Table of number of Crew and Passenger to be carried in each class of Boat according to Tonnage, published with the Notification of the Government of Bombay in the Marine Department, No. 186, dated the 25th January, 1921 the Central Government hereby makes the following rules for the Port of Bombay, the same having been previously published as required by sub-section (2) of the said section, namely :-

Rules

Port of Bombay Passenger Boats Rules, Tables of Fares and Table of number of Crew and Passengers to be carried in

each Class of Boat According to Tonnage

1.

Short title and application

(1)

These rules may be called the Port of Bombay Passenger Boats Rules, 1962.

2.

They shall apply to the port of Mumbai.

2. Interpretation

- In these rules unless the context otherwise require:

(a)

'boat' shall include any mechanically - propelled vessel;

(b)

'attendant' of any boat shall include a serang, tindal driver, lascar and boatman.

3.

Places from which boats to ply for hire

- Boats may ply for hire from any one or more of the following landing places from which they shall have been licensed to ply:

1. Sassoon Dock;

2. Apollo Bunder;

3. Mody or Carnac Bunder;

4.

Price's & Victoria Docks;

5.

Malet Bunder;

6.

Mazgaon Bunder;

7.

Lakdi Bunder

8.

Sewree Salt Fish Wharf.

4. Boats plying for hire not to lay alongside landing places longer than necessary and to obey orders of the Police for regulating traffic

- Boats plying for hire at any of the landing places mentioned in rule 3 shall not be laid alongside any such landing places or gangway ladders longer than actually, necessary to embark or land passengers and their luggage, etc. but shall be kept off at a distance at least 30 meters from such landing places or gangway ladders so as not to obstruct the approach thereto and the licensee or other attendant of the boat shall obey any orders given to him by the Police for the regulation of the traffic at the landing places or gangway of vessels.

5. Licenced boats not to go alongside a vessel under way unless called by Commander

- No licenced boat shall go alongside a vessel under way unless specially called by her commander.

6. Touting for hire at a distance forbidden

- Tindals and boatmen are forbidden to tout for hire at a distance from the landing places to the annoyance of people passing by.

7. Tindals and boatmen not to carry on the business of a hawker

- Tindals and boatmen are forbidden to carry on the business of a hawker.

8. No person to keep or let for hire any boat without a license and without being numbered

- No person shall keep or let for hire any boat without having a license in force for the same and without having the registration number allotted to it painted or branded on such parts of the said boat and in such manner as registering authority may direct.

9.

Mechanically propelled vessels not allowed to ply from certain landing places

- No mechanically propelled vessel shall be allowed to ply for hire from any of the landing places mentioned in items

1,3,5,7 and 8 of rule 3 and no licence shall be issued for the purpose.

10.

Notice to be given of change of residence

- Every licensee shall give notice of any change in the place of his residence as entered in the license to the Deputy Conservator in writing.

11.

Licenses when and by whom to be issued

- Licenses for keeping or letting for hire of any boat shall be valid for one year unless suspended or revoked earlier, in accordance with the provisions of rule 15 and may usually be granted on the 1st of January in each year by the Deputy Conservator on application.

12.

When Deputy Conservator may refuse to grant license

- The Deputy Conservator may in his discretion refuse to grant any such license for any boat which he may consider to be unfit for conveyance of the public or to any applicant whom he may consider, on account of age, bad character, or for any other reason, unfit to be entrusted with the same.

13.

Fees for license

- For any licence granted under rule 11 there shall be levied a fee in accordance with the class of license granted, as shown in the following scale.

Scale

of Fees to be levied on granting of license

Mechanically

propelled vessels

Rs.

15.00 ps.

Bunder

Boats, etc.

Rs.

2.00 ps.

Jolly

Boat, Dingies, Mutchwas, Prows, etc.

Rs.

1.00 ps.

Tonies

Hodies, Pagars, Sumbooks, etc.

Rs.

0.50 ps.

Duplicate

license

Half

of the above fees.

13A.

[Levy of surcharge

[Inserted by G.S.R. 648, dated 19th April, 1965]

- A surcharge at a rate of five per cent on the fees referred to in rule 13 shall be levied with immediate effect. In calculating the surcharge, fractions of a Paisa less than half a Paisa will be ignored while half a Paisa and over will be reckoned as one Paisa.]

14.

Licenses to be renewed annually

- [(1)]

[Re-numbered by G.S.R. 433, dated 15th March, 1966]

The Deputy Conservator shall, as soon as possible after the 1st day of January in each year, renew the licenses on payment of the prescribed fee by the licensees. While renewing the license, it shall be open to the Deputy Conservator to alter or reduce the number of the landing places from which the boat is licensed to ply.

Provided that nothing herein contained shall prevent the Deputy Conservator from refusing absolute to renew the license of any boat which he may consider to be unfit, or the owner or licensee or other attendant of which he may consider for reasons to be recorded, unfit to be entrusted with such renewed license.

Provided further that the licensee or other attendant of a mechanically propelled vessel shall not, by reason of any license granted under these rules, ply such vessel for hire without a valid Certificate of Survey granted to such vessel under the provisions of the Inland Steam Vessels Act, 1917 (I of 1917).

(2)

[Any person aggrieved by-

[Inserted by G.S.R. 433, dated 15th March, 1966]

(i)

any alteration or reduction in the number of landing places from which a boat is licensed to ply; and

(ii)

any refusal to renew the license of a boat.

made under sub-rule (1), may prefer an appeal to the Chairman, Bombay Ports Trust.]

15.

[Suspension and revocation of licences.

[Substituted by G.S.R. 433, dated 15th March, 1966]

(1)

in the event of any licensed boat being at any time found unfit for the conveyance of the public or of the licensee or other attendant thereof appearing unfit to be entrusted with the change of the same or of the boat being used for any purpose other than that for which the licence is granted or in the case of breach of any of the provisions of these rules, the Deputy Conservator, after giving the licensee an opportunity to be heard may, be order in writing and for reasons to be recorded therein, suspend or revoke the licence.

(2)

Any person aggrieved by an order under sub-rule (1) may prefer an appeal to the Chairman, Bombay Ports Trust.]

16.

Boats whose license has been suspended or revoked not to ply for hire until restoration or renewal of license

- The owner of any boat, the license of which has been suspended or revoked shall not permit the same to ply for hire before he shall have obtained a restoration or renewal of such license from the Deputy Conservator.

17.

Suspended or revoked licenses to be returned to the Deputy Conservator

- Suspended or revoked licenses shall be returned to the Deputy Conservator within 24 hours of such suspensions or revocation.

18.

Deputy Conservator may issue duplicate licenses in certain cases

- On proof of a license having been lost or mislaid or the particulars written in such license having been accidentally obliterated or defaced, the Deputy Conservator may grant a duplicate license on payment of the fee prescribed in rule

13.

19.

Licenses not transferable without the sanction of the Deputy Conservator endorsed thereon

- No license granted under these rules shall be transferable without the sanction of the Deputy Conservator endorsed thereon. Any transfer made without such sanction shall forthwith render the license null and void.

20.

No person to use or authorise the use of a license, for a boat other than that for which it has been issued

- The Deputy Conservator shall keep a register containing full particulars of each boat as entered in the license thereof, and no person shall use or authorise the use of license, for a boat other than that for which it has been issued, as apparent from the register.

21.

Boats not to carry passengers in excess of the number licensed to carry

- 1. No licensee or other attendant of a boat shall carry or permit to be carried by the same more passengers than the number such boat is licensed to carry.

2. The number of passengers and crew to be carried by any mechanically propelled vessel shall be in conformity with the number detailed in the Certificate of Survey granted in respect of such vessel under the Inland Steam Vessels Act, 1917.

22.

Number of a boat to be open to public view

- No licensee or other attendant of a boat shall, in any manner or by any means, conceal or permit to be concealed from public view the number of the boat, nor shall he in any way attempt to prevent or obstruct any person from taking or noting the number of such boat.

23.

Licensee not to permit persons in a boat without the consent of the hirers

- No licensee or other attendant of any boat, the whole of which has been hired or taken by one or more persons, shall permit or suffer any person to be carried in or upon such boat without the express consent of the person or persons hiring the same.

24.

Licensee always to have with him license, etc. and to produce the same when demanded by hirer or passenger

- Every licensee or other attendant of a boat shall always have his license and rules and table of fares with him, and shall on demand produce the same for the information of any hirer of, or passenger by, such boat.

25.

Rules and table of fares to be prepared in the office of the Deputy Conservator and issued to applicants on payment of price

- Rules and tables of fares relating to boats shall be prepared in the office of the Deputy Conservator, and shall be issued to all applicants on payment of 50 P. for each copy.

26.

Licensee not to refuse to give way to any private boat or obstruct any public boat

- No licensee or other attendant of a boat shall refuse or neglect to give way, if he conveniently can, to any private boat nor shall he obstruct or hinder the licensee or other attendant of any other public boat in embarking or landing any persons from such boat.

27.

Licensee to be sober and obedient to hirers and to keep his boat clean

- Every licensee or other attendant of any boat shall at all times during such employment be sober and shall obey the reasonable orders of the persons hiring or using his boat, and shall always, when plying for hire, keep the inside of his boat clean.

28.

Licensee not to demand pre-payment of fare or refuse to convey persons desirous of hiring, or refuse or delay to proceed with reasonable expedition or demand more than legal fare or anchor or lay off than appointed pier or bundar

- No licensee or other attendant of any boat plying for hire shall demand prepayment of his fare, or refuse to convey any persons desirous of hiring his boat or delay to proceed with reasonable expedition or exact or demand for the hire thereof more than the regulated sum, or anchor at or lay off any other pier or bundar than that for which his license is granted:

Provided that the Deputy Conservator, where he so thinks fit, may, on application by the hirer of any such boat, allow the boat to anchor or lay off any pier or bundar other than the one for which the license in respect of such boat has been granted.

29.

Dispute between licensees and hirers to be referred to the officer in charge of the nearest Police Station

- In case of any dispute, the hirer of any boat may require the licensee or other attendant, and the licensee or attendant may require the hirer, to proceed forthwith to the officer in charge of the nearest Police Station, who shall, if necessary refer the matter to a Magistrate for decision.

30.

Licensee or other attendant bound to ply for hire when required by a Police Officer

- Every licensee or other attendant of any boat shall be bound, when required by a police officer to do so, to cause the same to ply for hire.

31.

Property left in a boat to be deposited in the office of the Commissioner of Police and returned to the owner

- Property left in any boat shall be forthwith deposited by the licensee or other attendant in the office of the Commissioner of Police, to be returned to the person who shall prove to the Commissioner of Police that the same belonged to him, on payment of all expenses reasonably incurred.

32.

Penalty for breach of rules

- Whoever commits a breach of any of the provisions of these rules shall on conviction by a Magistrate be punishable with fine which may extend to one hundred rupees under section 54 of the Indian Ports Acts, 1908.

Authorised Table Of Fares For Mechanically Propelled Vessels In The Bombay Harbour

Cruising

Charges (When the vessel is

under way with the engine running)

Waiting

Charges, (When the vessel is not under way with the engine running)

Rs. nP.

Rs. nP.

1 For the hire of a vessel for any period:-

(a) Not exceeding a quarter of an hour

5

2.5

(b) Exceeding a quarter of an hour

but not exceeding half an hour

10

5

(c) Exceeding half

an hour but not exceeding three

quarters of an hour

15.00

7.5

(d) Exceeding three quarters of an

hour but not exceeding an hour

20

10

and

For

each quarter of an hour or part thereof in excess of an hour

5

2.5

2. For the hire of a vessel for a trip:-

(a) For a short distance to and from ships lying within Tucker

Beacon and Cross Island

Rs. 2, per

head each way subject to a minimum total hire charge of Rs. 12 per single trip and Rs. 20 return.

The

fares per trip shall be inclusive of a waiting period not exceeding half an hour.

(b) For long distances to and from

ships living near Pir Pau, Butcher Island, Hog Island and Elephanta Island.

Rs.5 per head each way subject to a minimum total

hire charge of Rs.30

per single

trip and Rs.

40 return.

Waiting

in excess of half an hour may be charged for at the rates

provided in 1

above.

3, For trip from Apollo Bunder on a

round trip between Middle Ground and the Dolphin Rock

Lighthouse.

Re.

0.50 per passenger.

Note. - (1) All baggage except hand parcels to be paid for at the rate of 25 nP. per package.

(2)

Persons wishing to engage a vessel for any other service shall make their own arrangements for the fare with the syrang, tindal or owner of the vessel.

Tonnage

No.

of Crew

No.

of Passengers

Fair

Season

Monsoon

From

1

$\frac{1}{2}$

tonnes

to

2

tonnes

3

4

3

Above

2

Do

2

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Do

4

5

4

Do

2

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3
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6
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3
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8
6
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10
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4
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12
9
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4
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5
14
11
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5
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5
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15
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26
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3
4
7
5
There
must be sitting room for the above number, or the passengers will be reduced
accordingly
Bunder
Boats
From
6
tonnes
to
6
 $\frac{1}{2}$ tonnes
7
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13
Above
6
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